

## Mohammad Khalid v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Another

Allahabad High Court · Division Bench · 21 July 2014 · 2014 SCC OnLine All 11652 · Writ - C No. 37041 of 2014 · **Writ petition disposed of directing the licensee to decide the pending Clause 6.5 representation within seven days; the under-protest deposit to be adjusted per the decision**

### HEADNOTE

A billing grievance is to be pursued through a representation before the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005, which must be decided within seven days, and Clause 6.5(b) requires a deposit under protest for the representation to be entertained. The consumer (44 KVA export-office connection), having earlier been relegated to Clause 6.5 by an order of 8.5.2014 but taking over one and a half months to approach the authority, could not blame the licensee for the disconnection that followed, which was attributable to his own delay. The Court directed the competent authority to decide the pending representation in accordance with law within seven days, the under-protest deposit to be adjusted in the payment due on that decision.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

Billing grievance decided by representation under Clause 6.5 within seven days; deposit under protest

#### QUESTION

What is the consumer's remedy for a disputed demand, and can he blame the licensee for a disconnection following his own delay in invoking Clause 6.5?

#### HOLDING

The remedy is a representation before the competent authority under Clause 6.5, to be decided within seven days, with a deposit under protest under Clause 6.5(b). The disconnection here was attributable solely to the consumer, who took more than a month and a half to approach the authority despite an earlier order (8.5.2014). The Court directed the competent authority to decide the pending representation within seven days of service, the under-protest deposit to be adjusted per that decision. ¶ 3-7

#### LIMITING FACTS

44 KVA export-office connection; earlier writ (25996 of 2014) disposed on 8.5.2014 relegating to Clause 6.5; consumer delayed over 1.5 months; supply disconnected meanwhile.

### PRINCIPLE TAGS

**billing-objection-to-executive-engineer-under-6.5** A disputed demand is pursued by a Clause 6.5 representation (with a Clause 6.5(b) deposit under protest), to be decided within seven days. ¶ 3-7

**consumer-cannot-blame-licensee-for-consequences-of-own-delay** A disconnection following the consumer's own delay in invoking the Clause 6.5 remedy is attributable to him, not the licensee. ¶ 5

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — THE CORRECTNESS OF THE DISPUTED DEMAND

Left to the competent authority on the Clause 6.5 representation. ¶ 7